

24NNCV06441 24NNCV06441

County: los-angeles

Division: Civil Law and Motion

Department: A

Hearing date: 2026-07-10

Source URL:

https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=BUR%2CA%2C07%2F10%2F2026

Source SHA-256: a7f99873890cdfdb2e0065c7e61b851d50f1677c831f6481448611b0507c0923

Case Number: 24NNCV06441 Hearing Date: July 10, 2026 Dept: A

TENTATIVE RULING

JULY 10, 2026

MOTION FOR SUMMARY JUDGMENT

Los

Angeles Superior Court Case # 24NNCV06441

MP: Defendant/Cross-Complainant U.S. Bank National Association (sued as U.S. Bancorp)

RP: Plaintiff Georgina Tovar Canales

NOTICE:

The Court

is not requesting oral argument on this matter. The Court is guided by California Rules of Court, Rule 3.1308(a)(1) whereby notice of intent to appear is requested. Unless the Court directs argument in the Tentative Ruling, no argument is required and any party seeking argument should notify all other parties and the court by 4:00 p.m. on the court day before the hearing of the party's intention to appear and argue. The tentative ruling will become the ruling of the court if no argument is received.

Notice

may be given either by email at or by telephone at (818) 260-8412.

ALLEGATIONS:

A.

Complaint

Georgina

Tovar Canales ("Plaintiff") alleges that on January 3, 2023, she was at U.S. Bancorp and S.W.S. Realty, LLC's ("Defendants") premises located at or near 600 N. Brand Blvd. in Glendale when she slipped and fell on water and/or an unknown substance on the floor as she was walking towards the curbside ATM within the subject premises.

The Complaint,

filed December 11, 2024, alleges: (1) General Negligence; and (2) Premises Liability.

B.

Cross-Complaints

On February

5, 2025, U.S. Bank National Association (erroneously sued as U.S. Bancorp) filed a Cross-Complaint against S.W.S. Realty, LLC for: (1) Express Indemnity; (2) Equitable, Implied, and Total Equitable Indemnity; (3) Breach of Contract; (4) Comparative Indemnity and Apportionment of Fault; (5) Contribution; (6) Declaratory Relief: Duty to Defend; and (7) Declaratory Relief: Duty to Indemnify.

MOTION ON CALENDAR:

On February 19, 2026, U.S. Bank National Association ("USBNA") filed a Motion for Summary Judgment on the grounds that there are no triable issues of material fact on Plaintiff's claims. On June 18, 2026, Plaintiff filed an opposition. On June 29, 2026, USBNA filed a reply.

LEGAL

STANDARD:

The function of a motion for summary judgment or adjudication is to allow a determination as to whether an

opposing party cannot show evidentiary support for a pleading or claim and to enable an order of summary dismissal without the need for trial. (Aguilar v. Atlantic Richfield Co. (2001) 25 Cal.4th 826, 843.) C.C.P. § 437c(c) "requires the trial judge to grant summary judgment if all the evidence submitted, and 'all inferences reasonably deducible from the evidence' and uncontradicted by other inferences or evidence, show that there is no triable issue as to any material fact and that the moving party is entitled to judgment as a matter of law." (Adler v. Manor Healthcare Corp. (1992) 7 Cal.App.4th 1110, 1119.)

As to each claim as framed by the complaint, the defendant moving for summary judgment must satisfy the initial burden of proof by presenting facts to negate an essential element, or to establish a defense. (CCP § 437c(p)(2); Scalf v. D. B. Log Homes, Inc. (2005) 128 Cal.App.4th 1510, 1520.) Courts "liberally construe the evidence in support of the party opposing summary judgment and resolve doubts concerning the evidence in favor of that party." (Dore v. Arnold Worldwide, Inc. (2006) 39 Cal.4th 384, 389.) Once the defendant has met that burden, the burden shifts to the plaintiff to show that a triable issue of one or more material facts exists as to that cause of action or a defense thereto. To establish a triable issue of material fact, the party opposing the motion must produce substantial responsive evidence. (Sangster v. Paetkau (1998) 68 Cal.App.4th 151, 166.)

EVIDENTIARY OBJECTIONS:

With the opposition,
Plaintiff submitted evidentiary objections to USBNA's evidence submitted in support of the motion. The Court rules
as follows:

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Tyler M. Gnesda's
Declaration (USBNA's counsel): Objection No. 1 to paragraph 6 attaching Exhibit 4 to USBNA's evidence, which includes the Lease Agreement and the For the reasons set forth in USBNA's reply brief the objection is overruled. While it is true that USBNA's counsel has not laid the foundation for or authenticated the documents, the foundation was laid at the deposition. (See Sanchez v. Hillerich & Bradsby Co. (2002) 104 Cal.App.4th 703, 719 [stating that the trial court ruled that an attorney could not authenticate exhibits submitted in support of a summary judgment motion and that the belated

declaration of the custodian of records was too late], 720 [“The declaration did not specify that he was the custodian of these exhibits, or that these documents were prepared in the regular course of business, or that he personally prepared these documents or knew of the conditions under which they were prepared so that he could verify their trustworthiness.”].)

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Sandra Rothermund’s

Declaration (USBNA’s Bank Manager of the subject branch):

o Objection Nos. 2-3 regarding a portion of paragraph 4 (“nor any other employees at the USBNA Branch”) and to the entirety of paragraph 5 are overruled.

With the reply, USBNA submitted evidentiary objections to Plaintiff’s opposing evidence.

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Objection

No. 1 to Sima Shidfar’s deposition transcript is overruled.

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Objection

No. 2 to Plaintiff’s deposition transcript is overruled.

ANALYSIS:

USBNA

moves for summary judgment arguing: (1) Plaintiff cannot prove that USBNA had ownership of, occupancy of, or the duty to maintain any portion of the “Common Areas” of the “Office Building Project” located at the subject premises where the alleged slip and fall occurred; (2) Plaintiff cannot establish that USBNA had actual or constructive notice of any alleged “dangerous condition” on the floor of the “Common Areas” of the “Office Building Project” on January 3, 2023, nor do the facts support a reasonable inference that USBNA caused or had actual or constructive notice of any alleged “dangerous condition”; and (3) the undisputed facts show the alleged “dangerous condition” on the floor of the “Common Areas” of the “Office Building Project” was a naturally occurring, open and obvious condition (rainwater) that Plaintiff observed and recognized prior to the alleged slip and fall.

A.

Ownership,
Possession, or Control of the Premises

USBNA argues it is entitled to summary judgment because there is no evidence that it owned, possessed, or controlled the Premises where the dangerous condition was located.

The elements of a premises liability claim and negligence claim are the same: a legal duty of care, breach of that duty, and proximate cause resulting in injury. (Kesner v. Superior Court (2016) 1 Cal.5th 1132, 1158.) “Those who own, possess, or control property generally have a duty to exercise ordinary care in managing the property in order to avoid exposing others to an unreasonable risk of harm.” (Id.) A “defendant cannot be held liable for the defective or dangerous condition of property which it did not own, possess, or control. Where the absence of ownership, possession, or control has been unequivocally established, summary judgment is proper.” (Sabetian v. Exxon Mobil Corp. (2020) 57 Cal.App.5th 1054, 1071.)

USBNA

provides the following material facts.

This litigation arises out of an alleged slip-and-fall incident that occurred on January 3, 2023, at approximately 1:00 a.m. outside a USBNA branch located at 600 North Brand Blvd. in Glendale (“Premises”). (USBNA Fact 1.) Plaintiff filed the Complaint on December 11, 2024, against USBNA and SWS, alleging Negligence and Premises Liability. (Id. at 9.) Plaintiff alleges that on January 3, 2023, she was lawfully on the Premises and was walking on the exterior sidewalk/walkway surrounding the Premises towards the outdoor curbside ATM within the Premises when she stepped on water and/or an unknown substance on the floor which caused her to slip and fall. (Id. at 2, 10.) Plaintiff alleges that both USBNA and SWS “had sole and exclusive custody and control of the aforesaid [Premises] . . . and owed a duty to Plaintiff and others lawfully on said [Premises] to keep said [Premises] in a good and safe condition[.]” (Id. at 11.) She also alleges that USBNA “caused and permitted said [Premises] to be and remain in a dangerous and unsafe condition” and that USBNA “caused or permitted structures and/or components and/or other parts of said [Premises] to be and remain, wet, and

otherwise deficient.” (Id. at 12.)

She alleges that USBNA both failed to warn about and properly protect the area where the alleged dangerous condition existed. (Id. at 13.)

Relying

on counsel Tyler M. Gnesda’s declaration and Exhibit 4 (Lease Agreement and Amendments), USBNA asserts that it does not own the Premises, sidewalk/walkway, curbside, or surrounding exterior areas, relying on. (Id. at 5.) USBNA asserts it leases interior office/business space at the Premises pursuant to a lease agreement with Taghi Shoraka and Sima Shidfar of SWS Realty, LLC (“SWS”). (Id. at 6.) Under the subject lease agreement, USBNA asserts that SWS agreed to maintain the building and common areas, defined to include sidewalks, curbs, walkways, driveways, and parking areas, in good condition and repair. (Id. at 7.) USBNA asserts that SWS retained exclusive control over these common areas and assumed responsibility for maintaining them in a safe condition. (Id. at 8.)

The

original lease agreement for the Premises was signed on July 15, 1994 between Citadel Realty, Inc. (lessor) and Fidelity Federal Bank (lessee) (“Original Agreement”) and, since then, it has been amended seven times. (Id. at 23.) The Fourth Amendment, dated May 17, 2010, clarified that TWS Realty, LLC succeeded Citadel after its merger, USBNA became the successor to CalNational Bank, and confirmed the terms of the Original Agreement. (Id. at 24.) The Fifth Amendment, executed on March 13, 2013, added Suite 250 to the premises while leaving all other terms, including indemnification, unchanged. (Id. at 25.) The Sixth Amendment, dated May 4, 2018, recorded SWS as TWS’s successor, with no changes to the Original Agreement except as specific and no alterations to the indemnification provisions. (Id. at 26.) The Seventh Amendment, executed March 1, 2023 (two months after the subject incident), made certain modifications to the agreement but the indemnification provision remained the same. (Id. at 27.)

The

Original Lease Agreement sets forth the following terms:

2.3 Common Areas – Definition. The Term ‘Common Areas’

is defined as all areas and facilities outside the Premises and within the exterior boundary line of the Office Building Project that are provided and designated by the Lessor from time to time for the general non-exclusive use of Lessor, Lessee and of the others lessees of the Office Building Project and

their respective employees, suppliers, shippers, customers, and invitees, including, but not limited to, common entrances, lobbies, corridors, stairways and stairwells, public restrooms, elevators, escalators parking areas to the extent not otherwise prohibited by this Lease, loading and unloading areas, trash areas, roadways, sidewalks, walkways, parkways, ramps, driveways, landscaped areas and decorative walls.

2.4 Common Areas – Rule and Regulations. ... Lessor or such other person(s) as Lessor may appoint shall have the exclusive control and management of the Common Areas and shall have the right, from time to time, to modify, amend and enforce said rules and regulations.

...

7.1 Lessor's Obligations. Lessor shall keep the Office Building Project, including the Premises, interior and exterior walls (but not the interior walls within the Premises), roof, and Common Areas, in good condition and repair

(USBNA
Fact 28-30; USBNA's Ex. 4 [Original Lease Agreement at §§ 2.3, 2.4, 7.1].)

USBNA
argues that based on the language of the Original Lease Agreement and the Amendments thereto which did not affect the lessor's duties respecting the Common Areas and Lessor's Obligations, it has unequivocally shown that it did not own, possess, and/or control the subject location where the incident occurred.

USBNA
has upheld its initial burden in summary judgment regarding the issue of ownership, possession, and/or control of the subject premises based on admissible evidence.

As
such, the burden does not shift to Plaintiff to raise a triable issue of material fact. Plaintiff argues there are triable issues of material fact that would preclude summary judgment on this issue.
Plaintiff provides the deposition transcript of Sima Shidfar, SWS's PMK.

Sima

Shidfar testified regarding the Original Lease Agreement, stating that while the common areas included the customer parking, main lobby, bathrooms, and upper floors, “[a]round the back, the walkways where the ATM, night drop and all of those things are, that’s for exclusive use of common area of U.S.

Bank.” (Pl.’s Additional Material Fact

[AMF] 1-3; Opp. Ex. A [Shidfar Depo. at 29:11-30:18].) When asked if SWS had exclusive control over managing the area, Sima Shidfar testified that the ATM, lighting of the ATM, everything about the ATM, and deep cleaning the area was maintained by U.S.

Bank. (Pl.’s AMF 4; Shidfar Depo. at

31:2-10.) Plaintiff claims the exterior

walkway/sidewalk where Plaintiff fell was exclusively used, cleaned,

controlled, managed, and maintained by U.S. Bank. (Pl.’s AMF 2, 7; Shidfar Depo. at 31:2-10, 38:2-14,

39:12-22, 59:10-60:9, 95:9-96:3.) Sima Shidfar states that SWS did not mop or

power wash the exterior walkway/sidewalk where Plaintiff fell in front of the

ATM. (Pl.’s AMF 8.)

Plaintiff

presents evidence that U.S. Bank had a separate cleaning crew from SWS that cleaned around the ATM after hours at night, SWS never provided mats to U.S.

Bank to use in the doorway or ATM area when raining, and the metal mat in front

of the bank entrance to the left of the ATM belonged to U.S. Bank. (Pl.’s AMF 9, 13-14.) Sima Shidfar testified that the tile on the

U.S. Bank sidewalk was different from the other three sides of the building

that were maintained by SWS and that SWS approved U.S. Bank’s plan for a tenant

improvement to change the sidewalk tile (which U.S. Bank paid for) but U.S.

Bank did not go through with it due to an ongoing lawsuit. (Pl.’s AMF 6, 16; Shidfar Depo. at

36:15-37:6, 60:22-61:8, 98:5-13.)

Plaintiff provides Ms. Rothermund’s deposition transcript, wherein she

testified that if U.S. Bank had safety issues like spills in front of the ATM,

U.S. Bank would call its own janitorial staff to clean it up and would put out

its own mats and cones outside if wet or raining. (Pl.’s AMF 10-12.)

Here,

even if considering the Lease Agreement, Plaintiff has raised triable issues of material fact regarding whether USBNA possessed and/or controlled the subject premises. While section 2.4 of the Lease

Agreement states that Lessor has exclusive control and management over Common

Areas, as defined in section 2.3, it also allows for “such other person(s) as

Lessor may appoint.” Furthermore, by USBNA’s conduct, Plaintiff has raised triable issues of material fact showing that USBNA controlled and managed the subject premises in front of the ATM by hiring its own cleaning crew for that area, placing cones and mats during rainy seasons, and even paying for tile replacement.

For these reasons, the motion for summary judgment will not be granted on the basis of whether USBNA owned, possessed, or controlled the Premises.

B.

Actual or

Constructive Notice and Causation

USBNA

argues that it did not have actual or constructive notice of any alleged dangerous condition at the subject premises that caused the subject incident.

The

Supreme Court in *Ortega v. Kmart Corp.* (2001) 26 Cal.4th 1200 stated:

A

mere possibility of such causation is not enough; and when the matter remains one of pure speculation or conjecture, or the probabilities are at best evenly balanced, it becomes the duty of the court to direct a verdict for the defendant.” [Citation.] In the context of a business owner’s liability to a customer or invitee, speculation and conjecture with respect to how long a dangerous condition has existed are insufficient to satisfy a plaintiff’s burden. [Citation.] In other words, “ ‘[p]roof of negligence in the air, so to speak, will not do.’ ” [Citation.]

Because

the owner is not the insurer of the visitor’s personal safety [citation], the owner’s actual or constructive knowledge of the dangerous condition is a key to establishing its liability. Although the owner’s lack of knowledge is not a defense, “[t]o impose liability for injuries suffered by an invitee due to [a] defective condition of the premises, the owner or occupier ‘must have either actual or constructive knowledge of the dangerous condition or have been able by the exercise of ordinary care to discover the condition, which if known to

him, he should realize as involving an unreasonable risk to invitees on his premises....' " [Citation.]

...

The plaintiff need not show actual knowledge where evidence suggests that the dangerous condition was present for a sufficient period of time to charge the owner with constructive knowledge of its existence. Knowledge may be shown by circumstantial evidence "which is nothing more than one or more inferences which may be said to arise reasonably from a series of proven facts." [Citation.] Whether a dangerous condition has existed long enough for a reasonably prudent person to have discovered it is a question of fact for the jury, and the cases do not impose exact time limitations. Each accident must be viewed in light of its own unique circumstances. [Citation.] The owner must inspect the premises or take other proper action to ascertain their condition, and if, by the exercise of reasonable care, the owner would have discovered the condition, he is liable for failing to correct it. [Citation.] In this case, we consider how a plaintiff may establish a defendant's constructive knowledge.

(Ortega, supra, 26 Cal.4th at 1205–07 [citations omitted].)

First, USBNA argues that there is no evidence that it had actual notice of the alleged dangerous condition of rainwater and tree debris. USBNA argues that Plaintiff was the only party to the action with actual notice of the dangerous condition since she observed the presence of rainwater and tree debris prior to her fall.

USBNA provides the following material facts. Plaintiff has testified that she observed the subject sidewalk/walkway as being wet and covered with "mushy" tree debris. (USBNA Fact. at 3.)

Plaintiff has further acknowledged that she was aware of the wet conditions due to rain fall throughout the night, and that she wore her "slip-resistant" Dr. Martens shoes and waterproof puffer jacket due to this knowledge. (Id. at 4.) Significant rainfall was experienced at the Premises throughout the later afternoon and night on January 2, 2023. (Id. at 17.) Plaintiff testified that "it was raining, like, maybe the week, days before or something, yeah. It was very wet,

I remember that.” (Id. at 18.) A light mist was still present at the Premises upon Plaintiff’s arrival at approximately 1:00 a.m. on January 3, 2023. (Id. at 19.) Plaintiff parked her car facing the Premises near a red curb, exited her vehicle, took her small dog out of the car, and began walking towards the USBNA ATM. (Id. at 20.) The condition was a result of the culmination of rainwater and tree debris over many hours outside of regular business hours when no USBNA representative, employee, or agent was present at the Premises. (Id. at 21.) Plaintiff did not call or inform USBNA or SWS of the presence of any such condition. (Id. at 22.) Plaintiff does not dispute Fact Nos. 3-4, 17-20, and 22, but disputes Fact 21 to the extent there is no evidence that the “mushy” condition developed outside of business hours.

At this time, the Court does not find that USBNA’s reliance on Fact 3 is sufficient to establish its initial burden that it lacked actual notice of the subject dangerous condition of the “mushy” tree debris. The fact that Plaintiff observed the tree debris at 1:00 a.m. on January 3, 2023 does not establish that USBNA lacked actual notice of the condition. Thus, the burden does not shift with respect to whether USBNA lacked actual notice.

Second, USBNA argues that it did not have constructive notice of the alleged dangerous condition. It argues that the “incontrovertible evidence ... demonstrates that USBNA had no conceivable way of knowing the alleged condition existed, nor that USBNA had sufficient time to correct it.” (Mot. at 11:23-26.) It argues that it could not discover a condition through reasonable inspection because the condition resulted from the cumulation of rainwater for several hours which developed late at night outside of regular business hours and that Plaintiff visited the ATM at 1:00 a.m. when no USBNA employees/agents could have reasonably been able to discover the existence of the condition. (USBNA Fact 17.) It argues the condition never existed during business hours. (Mot. at 12:4-6.)

Although USBNA argues that the condition never existed during business hours, USBNA has not presented any evidence on this assertion. Even turning to Ms. Rothermund’s declaration, she states that the branch hours were from 9:00 a.m.

to 5:00 p.m. and that she worked from 8:00 a.m. to 6:00 p.m., such that there were no staff from 1:00 a.m. to 2:00 a.m. when the subject incident took place. (Rothermund Decl., ¶3.) She states she was never informed of any slip-and-fall and she was not aware of any USBNA Branch member or employee that had knowledge of any alleged slippery or otherwise dangerous condition at the premises. (Id., ¶¶4-5.) However, she has not made any statements that she observed the premises upon leaving the USBNA Branch (as opposed to members or employees) and that she was not aware of any slip-and-fall accidents previously until USBNA contacted her that Plaintiff filed a complaint. There is no other evidence—by way of deposition testimony regarding the condition of the premises during business hours or until Ms. Rothermund left the premises or photographs of the ATM machine during and after business hours on January 2, 2023 or early morning January 3, 2023.

Based on the evidence provided (or lack thereof), the Court does not find that USBNA established its initial burden on whether it lacked constructive notice. Furthermore, as stated in Ortega, whether a dangerous condition existed long enough for a reasonably prudent person to have discovered a dangerous condition is a question of fact for the jury. At this point, the Court cannot ascertain how long the rainwater and the “mushy” tree debris were on the floor near the ATM, whether this condition existed during business hours, after business hours and before Ms. Rothermund left), or when USBNA’s cleaning crew came through (potentially after regular business hours), etc.

In opposition, Plaintiff provides USBNA’s Special Interrogatory responses. (Opp. at Ex. D [USBNA’s SROG Responses].) When asked for the exact time of USBNA’s last inspection of the location prior to the incident, USBNA responded: “Upon information and belief, any inspection or observation of the premises would have occurred, if any at all, prior to the close of business hours.” (SROG No. 24.) It further responded that SWS was reasonable for maintaining and repairing the common areas. (Pl.’s AMF 21-23.) Based on USBNA’s discovery responses, it is unclear if USBNA conducted an inspection of the premises for dangerous conditions since it contended that SWS was responsible for doing so. However, as discussed above, there are triable issues whether USBNA was responsible for the premises near the ATM.

Furthermore,

while USBNA argues that Plaintiff chose to go to the ATM after regular business hours, USBNA also does not deny that it offered a 24-hour ATM on its premises for patrons to use after regular hours.

(Pl.'s AMF 6; Rothermund Depo. at 36:10-12.)

The motion will not be granted on this basis.

C.

Open and

Obvious Condition

Finally, USBNA argues that the undisputed facts show the alleged dangerous condition was a naturally occurring open and obvious condition in the form of rainwater that Plaintiff observed and recognized prior to the alleged slip and fall such that it had no duty to warn or remedy the condition.

The Court of

Appeal in *Jacobs v. Coldwell Banker Residential*

Brokerage Co. (2017) 14 Cal.App.5th 438 addressed whether a duty existed where a dangerous condition is open and obvious:

Foreseeability

of harm is typically absent when a dangerous condition is open and obvious.

[Citation.] "Generally, if a danger is so obvious that a person could reasonably be expected to see it, the condition itself serves as a warning, and the landowner is under no further duty to remedy or warn of the condition."

[Citation.] In that situation, owners and possessors of land are entitled to assume others will "perceive the obvious" and take action to avoid the dangerous condition. [Citation.]

An exception

to this general rule exists when "it is foreseeable that the danger may cause injury despite the fact that it is obvious (e.g., when necessity requires persons to encounter it)." [Citation.] In other words, while the obviousness of the condition and its dangerousness may obviate the landowner's duty to remedy or warn of the condition in some situations, such obviousness will not negate a duty of care when it is foreseeable that, because of necessity or other circumstances, a person may choose to encounter the condition.

(Jacobs, supra, 14 Cal.App.5th at 447 [citations omitted].)

As stated

by the Court of Appeal in Nicoletti v. Kest
(2023) 97 Cal.App.5th 140:

[R]unning

water on a surface is arguably a more obvious danger than standing water. Not only does the water current make the surface slippery, but also a reasonable person would observe that running water could create a force that would cause someone to fall over. Further, “[i]t is a matter of common knowledge among children and adults that wet concrete is slippery and that, when on a slanting incline” such as a driveway, “it does not provide a safe footing.”

[Citation.] Accordingly, the dangerous condition was open and obvious to Nicoletti, and Dolphin had no duty to warn.

[...]

Here,

Nicoletti was not required to use the North Side Gate entrance to the apartment complex. Nicoletti fails to rebut Dolphin's evidence showing that the apartment complex had multiple entrances. Relatedly, she proffers no evidence that she was required to use the North Side Gate entrance. ... Moreover, even crediting Nicoletti's testimony that she passed by the North Side Gate “thousands of times” does not assist her. Here, Nicoletti's testimony that she commonly used one of the three entrances falls short of establishing a “necessity” to use that entrance when water currents impeded it. [Citation.] Nicoletti's argument that other residents commonly used the North Side Gate entrance is unsupported by the record and fails for that reason. In addition, as with Nicoletti herself, other residents' common use of an entrance does not point to a “necessity” to use that particular entrance. [Citation.] Accordingly, the undisputed facts indicate that it was not foreseeable that Nicoletti would “ ‘knowingly embrace an entirely obvious risk’ ” by choosing to cross the North Side Gate driveway. [Citation.]

[...]

Our

holding is also consistent with our Supreme Court's declaration that courts

must assign tort duties “to ensure that those ‘best situated’ to prevent such injuries are incentivized to do so.”

[Citation.] Under these circumstances, Nicoletti was in a better position to avoid the obvious danger of walking across a current of water that formed as a result of a rainstorm that began that same day. As discussed above, Nicoletti could have chosen to use a different entrance. The burden imposed on Dolphin to constantly monitor weather conditions and immediately install warning signals is outweighed by Nicoletti's ability to avoid a condition she should have observed as obviously dangerous.

(Nicoletti v. Kest (2023) 97 Cal.App.5th 140, 146, 147 [citations omitted].)

An exception to the general “open and obvious” rule is when “it is foreseeable that the danger may cause injury despite the fact that it is obvious (e.g., when necessity requires persons to encounter it). [Citation.] In other words, while the obviousness of the condition and its dangerousness may obviate the landowner's duty to remedy or warn of the condition in some situations, such obviousness will not negate a duty of care when it is foreseeable that, because of necessity or other circumstances, a person may choose to encounter the condition.” (Kaney v. Custance (2022) 74 Cal.App.5th 201, 215 [internal quotation marks omitted].)

USBNA argues that the Court should apply Nicoletti to find that the alleged condition was open and obvious as the condition was visible to Plaintiff, Plaintiff testified she knew it was wet and proceeded to the ATM anyway, and she wore “weather resistant” shoes and jacket to avoid accident. (USBNA Fact 3-4, 17-19.) USBNA argues that no exception to this doctrine exists (such as hazards or inevitability) because Plaintiff decided to go to the subject premises at 1:00 a.m. after severe rainfall.

Based on USBNA's material facts and evidence, the Court finds that it has established its initial burden on whether the condition was open and obvious. Thus, the burden shifts to Plaintiff to raise a triable issue of material fact.

In opposition, Plaintiff provides her deposition testimony, arguing that the risk of harm was foreseeable as

Plaintiff necessarily had to encounter the condition. Plaintiff testified: "Well, there a lot of debris or tree stuff all over the - - the ground. It was covering it. It was mushy, real wet and mushy stuff. ... Yeah, there was definitely stuff all over the ground there. ... It was wet, definitively wet. ... And it - - like I said, there was debris from the - - by the trees and stuff, I guess, or bushes. I don't know. But it was a - - a lot of mushy stuff on the ground there." (Opp. at Ex. C [Pl.'s Depo. at 53:22-54:19]; Pl.'s AMF 17-18.) She testified there was "no way not to - - to not step in that stuff because it - - it was covering - - I definitely remember on the yellow tile because the tile was yellow. But it - - it was everywhere. There was - - there was just no way to not step in it. ... But, definitely, the mushy stuff was everywhere, and there was no way to avoid it." (Pl.'s Depo at 72:1-73:5.)

Plaintiff has raised a triable issue of material fact regarding whether she was required to encounter the condition in order to reach the ATM. Plaintiff testified in order to access the ATM, she had no choice but to step on the dangerous condition.

As there is a triable issue of material fact regarding whether Plaintiff had to encounter the condition, the motion is denied on this basis.

RULING:

In the event a party requests a signed order or the court in its discretion elects to sign a formal order, the following form will be either electronically signed or signed in hard copy and entered into the court's records.

ORDER

Defendant/Cross-Complainant
U.S. Bank National Association's Motion for Summary Judgment came on regularly for hearing on July 10, 2026, with appearances/submissions as noted in the minute order for said hearing, and the court, being fully advised in the premises, took the matter under submission after argument

and now rule as follows:

the

Motion for Summary Judgment is DENIED.

PLAINTIFF

TO GIVE NOTICE.

IT IS SO

ORDERED.